

12.	30-2024-01399839 Lakeview Village Corp. vs. Coury	1. Motion for Bifurcation Motion for Bifurcation is denied without prejudice to be determined by the trial Judge before the start of trial. The order of proof at trial is generally <i>discretionary</i> with the trial judge. [Ev.C § 320—“Except as otherwise provided by law, the court in its discretion shall regulate the order of proof”]. Given the multiple pleadings at issue here consisting of both equitable and legal claims and defenses, the Judge who ultimately presides over the trial should determine the order of proof. Additionally, the Notice of Motion is defective and does not tell the Court precisely which causes of action or affirmative defenses should be heard first. [CCP § 1010; CRC 3.1110(a)] Clerk to give notice.
13.	30-2025-01518357 Carter vs. Built to Perfection, Inc	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories Plaintiff Judith A. Carter (“Plaintiff”) moves to compel defendant Built to Perfection, Inc. (“Defendant”) to serve further responses to Plaintiff’s Form Interrogatories, Set One, Nos. 15.1, 17.1, and 50.1. <u>No. 15.1</u> In response to No. 15.1, Defendant provides no facts upon which it bases any of its denials or affirmative defenses. Nor does it provide the identities of any persons who have knowledge of the pertinent facts or identify any documents in support. While Defendant argues the interrogatory is premature, the Court finds this argument unpersuasive, as Defendant must have at least some knowledge of the basic facts underlying this action that would allow it to provide some substantive response. To the extent Defendant claims that the subcontractor entity that actually performed the roofing work is the only entity that can answer the interrogatory, further response indicating as such is warranted. Thus, the Motion to Compel as to No. 15.1 is GRANTED. <u>No. 17.1</u> Defendant’s responses to Requests for Admission Nos. 39 and 40 were not unqualified admissions yet Defendant did not include a response to Interrogatory No. 17.1 in relation to those Requests. The Court finds that further response to No. 17.1 to incorporate those Requests is warranted. Defendant provided the same response to No. 17.1 in relation to Requests for Admission Nos. 16, 17, 21-23, 25, 29-32, 36, 37. Plaintiff argues further response to No. 17.1 as to these Requests is warranted because the Requests concern different topics and issues and Defendant’s identical three sentence response is evasive. However, review of the Requests and response to No. 17.1 shows that Defendant’s response addresses each issue raised in the Requests (damage to the property, breach of the agreement, sufficiency of the work performed). Thus, the Court does not agree that the response is evasive. Based on the above, the Motion to Compel as to No. 17.1 is GRANTED as it relates to Requests 39 and 40 and DENIED as to the remaining Requests. <u>No. 50.1</u> In response to No. 50.1, Defendant states it is producing its entire job file, including any written agreements entered into with Plaintiff. Defendant contends no further response is warranted and cites to Code of Civil Procedure section 2030.230. That section provides, in relevant part: If the answer to